

DISTRICT-Dinajpur
Tender No.88413

In the Supreme Court of Bangladesh
 High Court Division
 (Criminal Miscellaneous Jurisdiction)

Criminal Misc. Case No. of 2022

In the matter of:

An application under section 561A of
 the Code of Criminal Procedure.

-And-

In the matter of:

Md. Anowar Hosen
 Accused-Petitioner
 -Versus-

The State and another
 Opposite Parties
 Mr. Md. Mojibur Rahman, Advocate
 For the petitioner.
 Mr. Sujit Chatterjee, D.A.G. with
 Ms. Farhana Afroze Runa, A.A.G.
 Mr. Md. Abdul Aziz Masud, A.A.G.
 Mr. Md. Shamim Khan, A.A.G.
 For the State.

Present:

Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza

The 11th March, 2024

This application under Section 561A of the
 Code of Criminal Procedure at the instance of
 sole accused Md. Anowar Hosen of Session Case
 No.1021 of 2021 arising out of C.R. Case No.89
 of 2021 under Section 138 of the Negotiable
 Instrument Act, 1881 for quashment of judgment

and order dated 13.10.2022 passed by the learned Session Judge, Dinajpur rejecting Criminal Revision No.326 of 2022 submitted by the petitioner.

Mr. Md. Mojibur Rahman, learned Advocate for the petitioner submits that the petitioner had a business relation with the complainant who has filed this case under Section 138 of the Negotiable Instrument Act, 1881 using 9 different cheques allegedly issued by the petitioner. The petitioner filed a petition for obtaining opinion of the hand writing expert as to the hand writings of above cheque but the learned Joint Session Judge rejected above petition and challenging above order the petitioner preferred Criminal Revision No.326 of 2022 to the learned Session Judge, Dinajpur who also unlawfully rejected above Criminal Revision.

We have considered the submissions of the learned Advocate for the petitioner and carefully examined all materials on record.

It turns out from the petition submitted by the the accused petitioner on 19.07.2022 to the learned Joint Session Judge, Court No.1, Dinajpur for obtaining opinion of the hand writing expert that in above petition the accused petitioner has clearly stated that he gave signature in all above 9 cases by writing

his name Anowar since the petitioner has admitted in writing that he issued above 9 cheques by giving his signatures the learned Joint Session Judge rightly rejected his petition for obtaining opinion of the hand writing expert and the learned Session Judge on correct appreciation of above materials rightly rejected above Criminal Revision which calls for no interference.

In above view of the materials on record we are unable to find any substance in this petition under Section 561A of the Code of Criminal Procedure and the same is rejected summarily.

MD. MASUDUR RAHMAN
BENCH OFFICER